

Satya Pal Singh v. State of U.P. & Others

Allahabad High Court · Division Bench · 20 July 2011 · Writ - C No. 11641 of 2011 · **Writ disposed; petitioner may represent to EE for a speaking order.**

HEADNOTE

A writ against recovery of electricity dues, on the allegation that no provisional assessment was communicated and a Recovery Certificate was sent to the Collector without complying with the U.P. Electricity Supply Code, 2005, is disposed of without deciding those points. The petitioner may, if so advised, file a representation before the Executive Engineer, Electricity Distribution Division, Etah, who is to decide it by a speaking order, if possible within one month of receipt, and communicate the decision. The Court did not quash the Recovery Certificate, did not continue the earlier conditional stay of recovery, and did not decide whether a provisional or final assessment had been issued.

FACTUAL SUMMARY

Satya Pal Singh filed Writ-C No. 11641 of 2011 in the Allahabad High Court against the State of U.P. and others, including the Executive Engineer, Electricity Distribution Division, Etah, challenging recovery of electricity dues. On 7 April 2011 he was permitted to implead the Collector, Etah as respondent no. 4. Counsel submitted that no provisional assessment had been communicated, that no opportunity to object had been given, and that a Recovery Certificate had been sent to the Collector without complying with the U.P. Electricity Supply Code, 2005. On 25 February 2011 the Court had already asked whether any provisional or final assessment issued before the demand notice; by 7 April the licensee's counsel still had no instructions. Recovery under the Certificate was stayed until the next listing if Rs. 20,000 was deposited with the Executive Engineer within two weeks, without prejudice. The writ was finally heard on 20 July 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

recovery writ relegated to representation before the Executive Engineer

QUESTION

Should the writ court decide a challenge that no provisional assessment was served before a Recovery Certificate, or relegate the consumer to the Executive Engineer?

HOLDING

Without deciding whether a provisional assessment was communicated or the Supply Code, 2005 complied with, the Court disposed of the writ against recovery of electricity dues by permitting the petitioner, if so advised, to file a representation before the Executive Engineer, Electricity Distribution Division, Etah, to be decided by a speaking order, if possible within one month of receipt, and communicated to the petitioner. ¶ 3-4

QUALIFIER

The Court did not cite a numbered Code clause and did not continue or vacate the 7.4.2011 conditional stay in terms.

FLAG Seven-page order-sheet (listings of 25.2.2011, 1.3.2011, 4.3.2011, 29.3.2011 and 7.4.2011, then the numbered disposal of 20.7.2011). Pins are of that 20.7.2011 order. Petitioner's 7.4.2011 submission was that no provisional assessment was communicated and a Recovery Certificate went to the Collector without complying with the 2005 Code; the disposing Bench did not rule on that. Keyed to UP-2005 generally; the grievance sits with the Clause 6.8/8.1 provisional-assessment cluster, but the orders do not identify the demand as unauthorised use or theft.

PRINCIPLE TAGS

alternative-remedy-relegation The writ against electricity recovery was disposed of by permitting a representation to the Executive Engineer for a speaking order, without granting or refusing the challenge to the Recovery Certificate. ¶ 3-4

consider-grievance-in-accordance-with-law-no-merits The Court did not decide whether a provisional assessment had been issued or the Supply Code complied with, and left the grievance to a speaking order on representation, if possible within one month. ¶ 3-4

NOT DECIDED — WHETHER ANY PROVISIONAL OR FINAL ASSESSMENT WAS ISSUED OR COMMUNICATED BEFORE THE DEMAND NOTICE AND RECOVERY CERTIFICATE

Raised on 25.2.2011 and 7.4.2011; the disposing order of 20.7.2011 left it to a representation before the Executive Engineer. ¶ 3-4

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged non-compliance was not examined on the merits. ¶ 3-4

NOT DECIDED — QUANTUM OF THE ELECTRICITY DUES AND CONTINUATION OF THE 7.4.2011 CONDITIONAL STAY OF RECOVERY

The disposing order is silent on both. ¶ 3-4

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.